

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JEFREE ANTONIO TORRES POCASANGRE,

Petitioner

VS.

BIANCA LUZ PEREZ,

Respondent

) Case Number: FDI-25-801054

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER: RESPONDENT TO FILE THEIR PRELIMINARY DECLARATION OF
DISCLOSURES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jefree Antonio Torres Pocasangre and Respondent Bianca Luz Perez.
- 2) On 3/6/25, Petitioner filed a Petition for Dissolution indicating that the date of marriage is 2/7/21 and date of separation is 10/31/23 for a marriage of 2 years and 8 months. On 5/9/25, Respondent filed a Response and Request for Dissolution indicating agreement with the date of marriage and date of separation.
- 3) On 9/16/25, Petitioner filed form FL-141 (Declaration Regarding Service of Declaration of Disclosure) stating that his Preliminary Declaration of Disclosure was served on the other party by mail on 9/15/25.
- 4) On 3/12/26, Petitioner filed a Request for Order seeking Family Code section 2107 relief. Petitioner requests that the Court order Respondent to serve her Preliminary Declaration of Disclosure or waive receipt of Respondent's Preliminary Declaration of Disclosure under Family

Code section 2107(b)(3) in the alternative. Petitioner additionally requests \$8,000 in sanctions for Respondent's failure to provide her Preliminary Declaration of Disclosure.

- 5) On 3/12/26, Petitioner's attorney filed a declaration substantiating his request for \$8,000 in sanctions.
- 6) On 3/12/26, Petitioner filed a Memorandum of Points and Authorities.
- 7) On 3/26/26, Petitioner filed a declaration which appears to be the same declaration filed on 3/12/26 in support of his Request for Order.
- 8) On 3/26/26, Petitioner filed a Proof of Service by Mail indicating the Request for Order and supportive pleadings were served on Respondent on 3/24/26.
- 9) On 4/10/26, Respondent filed a Proof of Electronic Service of a Notice of Change of Address or Other Contact Information.
- 10) Respondent did not file a Responsive Declaration to the Request for Order.

B. Findings and Order

- 1) Family Code section 2104 mandates service – by both parties – of the preliminary declaration of disclosure.
- 2) Petitioner's request for the Court to compel Respondent to comply with Family Code section 2104 is therefore GRANTED.
- 3) By 5/31/26, Respondent shall complete her preliminary declaration of disclosure by:
 - a. Serving on Petitioner all of the following: Preliminary Declaration of Disclosure (form FL-140), current Income and Expense Declaration (form FL-150), completed Schedule of Assets and Debts (form FL-142) or Community and Separate Property Declarations (form FL-160) with appropriate attachments, all tax returns filed by the party in the two years before service of the preliminary disclosures, and all other required information under Family Code section 2104.
 - b. Filing Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (form FL-141) with the Court.
- 4) Family Code section 2107 provides the Court's authority to (a) grant a complying party's voluntary waiver of receipt of the noncomplying party's preliminary declaration of disclosure pursuant to Section 2104; and (b) impose money sanctions against the noncomplying party in an

1 amount sufficient to deter repetition of the conduct or comparable conduct, including reasonable
2 attorney's fees, costs incurred, or both, unless the court finds that the noncomplying party acted
3 with substantial justification or that other circumstances make the imposition of the sanction
4 unjust.

5 5) Based on the foregoing, if Respondent fails to meet the 5/31/26 disclosure deadline set forth
6 above, the Court finds good cause to GRANT Petitioner's request for waiver of Respondent's
7 Preliminary Declaration of Disclosure given Respondent's nonparticipation in the case.

8 6) Petitioner's request for \$8,000 in sanctions is GRANTED; albeit, in the amount of \$4,000. The
9 Court finds that Respondent failed to comply with the mandatory disclosure requirements and
10 caused unnecessary delay due to nonparticipation in the case.

11 7) The Court will prepare the Findings and Order After Hearing.
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